

SPECIAL ISSUE



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GAZETTE NOTICE NO. 1960

THE CONSTITUTION OF KENYA
THE COUNTY GOVERNMENTS ACT
(Cap. 265)

COUNTY GOVERNMENT OF BUSIA

RE-ASSIGNMENT OF PORTFOLIO IN THE COUNTY EXECUTIVE
COMMITTEE

IN EXERCISE of the powers conferred by the provisions of Article 179 of the Constitution of Kenya, as read with section 30 (e) and (i) of the County Government Act, I, Dr. Paul Nyongesa Otuoma, Governor Busia County, re-assign the persons named in the first column of the schedule below to be Members of Busia County Executive Committee responsible for the portfolio specified in the Third Column of the schedule:

SCHEDULE

<i>Member</i>	<i>Current Departmental</i>	<i>New Departmental</i>
Andrew Nakitari	Public Service Management and Administration	County Treasury and Economic Planning
Douglas Okiring	County Treasury and Economic Planning	Lands, Housing and Urban Development
Pamela Awori	Lands, Housing and Urban Development	Public Service Management, Governance and Administration
Topister Wanyama	Water, Environment, Irrigation, Natural Resources, Climate Change and Energy	Roads and Public Works
Peter Odima	Roads and Public Works	Water, Environment, Irrigation, Natural Resources, Climate Change and Energy

Dated the 4th December, 2025.

DR. PAUL NYONGESA OTUOMA,
Governor, Busia County.

GAZETTE NOTICE NO. 1961

THE CONSTITUTION OF KENYA
THE COUNTY GOVERNMENTS ACT
(Cap. 265)

HOMA BAY COUNTY PUBLIC SERVICE BOARD

ANNUAL STATUTORY REPORT ON THE PROMOTION OF VALUES AND
PRINCIPLES OF PUBLIC SERVICE FOR THE FINANCIAL YEAR 1 JULY
2024 TO 30 JUNE 2025

1. Legal Basis and Purpose

Notice is given that the Homa Bay County Public Service Board has prepared its Annual Statutory Report on the Promotion of Values and Principles of Public Service for the Financial Year 1 July 2024 to 30 June 2025, in compliance with Articles 10 and 232 of the Constitution of Kenya, 2010, and Sections 59(1)(g), 59(1)(h), 62 and 63 of the County Governments Act, 2012.

2. Mandate and Reporting Approach (Extract)

In line with Section 59 of the County Governments Act, the Board's core mandate includes establishing and abolishing offices in the county public service; appointing persons to hold or act in those offices; exercising disciplinary control; and evaluating and reporting to the County Assembly on compliance with Articles 10 and 232 of the Constitution, among other functions.

For this report, the Board assessed compliance using establishment analysis, internal HR audits and payroll reviews, recruitment and promotion records, diversity and inclusion indicators, disciplinary registers, training/capacity-building records, confirmations and re-designations, conversion of terms, and payroll cleanup reports.

3. Compliance with Article 232 (Values and Principles of Public Service) - summary

3.1 High standards of professional ethics: The Board promoted professional ethics through merit-based and integrity-focused HR decisions, including verification of qualifications, structured assessment processes, consistent documentation, and enforcement of lawful disciplinary procedures. Integrity was further reinforced through coordination of wealth declarations and issuance of ethics advisories.

3.2 Efficient, effective and economic use of resources: The Board strengthened efficiency and prudent use of resources through establishment control, targeted payroll cleanup and

corrective action on identified anomalies, and by aligning staffing actions to the approved establishment and wage-bill constraints. During the year, a targeted payroll cleanup focusing on 255 cases was undertaken (irregular/unauthorized appointments - 91; UPN cases - 161; unprocedural upgrades - 3).

3.3 Responsive, prompt, effective, impartial and equitable provision of services: The Board enhanced responsiveness and fairness through timely processing of HR requests, impartial handling of complaints, structured recruitment and disciplinary timelines, and urgent HR interventions where service delivery required immediate support, particularly in critical sectors.

3.4 Involvement of the people in policy making: The Board fostered public involvement by incorporating public participation into major recruitment processes and engaging stakeholders (including departments and relevant actors) to inform establishment reviews and HR policy implementation.

3.5 Accountability for administrative acts: Accountability was strengthened through formal recording of HR decisions, written advisories to departments, and insistence on justification and documentation for confirmations, re-designations, change of terms, promotions, and related HR actions.

3.6 Transparency and provision of timely, accurate information: Transparency was promoted through public advertisement of vacancies, publication of shortlists, timely communication of outcomes, and use of structured recruitment tools to support openness and consistency.

3.7 Merit-based appointments and promotions: Recruitment and promotion decisions were anchored on qualifications, experience, performance considerations, career progression requirements, and availability of positions within the approved establishment.

3.8 Adequate and equal opportunities for all: The Board promoted equal opportunity by mainstreaming fairness and inclusion in HR decisions, including attention to gender balance, youth inclusion, and participation of persons with disabilities, consistent with constitutional requirements.

3.9 Representation of Kenya's diversity: The Board continued to monitor diversity considerations in staffing actions and structured recruitment processes to reduce bias and promote fairness across the county public service.

3.10 Declaration of income, assets and liabilities: The Board co-ordinated declarations of income, assets and liabilities as an integrity control measure to mitigate corruption risks, prevent conflicts of interest, and strengthen accountability in the county public service.

4. Compliance with Article 10 (National Values and Principles of Governance) - summary

4.1 Rule of law: All HR decisions and corrective actions were undertaken in accordance with the Constitution and applicable statutes and policy instruments, with due process observed in disciplinary cases, including fair hearing requirements.

4.2 Human dignity, equity, social justice, inclusiveness, equality and non-discrimination: The Board promoted fair access to opportunities and equal treatment through transparent recruitment and HR decision-making, and by promoting inclusion of women, youth and persons with disabilities in line with constitutional standards.

4.3 Good governance, integrity, transparency and accountability: Good governance was advanced through open recruitment processes, verification of credentials, correction of irregular HR actions, issuance of departmental advisories, record-keeping, and written communication of HR outcomes.

4.4 Sustainable development: Staffing decisions were aligned to long-term service delivery priorities and establishment planning, while confirmations, promotions and re-designations supported a stable and competent workforce for sustainable service delivery.

4.5 Participation of the people: Public participation was supported through consultations and opportunities for

stakeholder input during HR processes, and through mechanisms for submission of feedback and complaints where applicable.

5. Key results during FY 2024/2025 (aggregated)

HR Action/Output	Total
New appointments	25
Confirmations to Permanent and Pensionable terms	442
Re-designations	45
Promotions (Department of Health)	624
Conversion of contract staff to Permanent and Pensionable terms (Health)	91
Disciplinary cases concluded	26 (15 dismissals; 11 warnings/interdictions lifted)
Contract extensions approved for Health staff (Apr-Jun 2025)	91 (three-month extensions)
Payroll cleanup and salary stoppages focus cases	255 (91 irregular/unauthorized appointments; 161 UPN cases; 3 unprocedural upgrades)
Approved staff establishment (as at Sep 2024)	21,965 positions
Officers in post	7,877
Overall variance (gap)	14,048
Declarations of Income, Assets and Liabilities (DIALs)	61 (10 initial; 51 final)

6. Material challenges affecting implementation

- Budget constraints and ceilings that limited full implementation of HR priorities.
- Inadequate staffing in critical units, affecting turnaround times and workload management.
- Weak HR structures in some departments, resulting in documentation gaps and inconsistent compliance.
- Delays and non-compliance by some authorized officers in submitting required HR documentation and implementing Board decisions.
- Historical payroll anomalies and legacy HR irregularities requiring sustained corrective interventions.
- Limited training and capacity-building resources to fully institutionalize ethics, performance management and professional development.

7. Priority Recommendations to the County Assembly—

- Support HR reforms and automation (HRMIS/HRIS) to enhance transparency, efficiency and control.
- Approve establishment realignment/staffing rationalization aligned to service delivery priorities and wage-bill ceilings.
- Strengthen HR capacity in departments by requiring functional HR units staffed with qualified officers.
- Allocate funding for training and capacity building (ethics, CPD, leadership and performance management).
- Reinforce compliance monitoring through audits and monitoring frameworks.
- Support full implementation of performance management systems (appraisals, performance contracting and service delivery indicators).
- Uphold merit-based recruitment and promotion and protect the Board's mandate and independence in HR processes.

8. Availability of the Full Report

The full Annual Statutory Report (including detailed annexes) is available for inspection at the offices of the Homa Bay County Public Service Board and through official county channels.

Dated the 16th February, 2026.

RUTH ALOO,
Ag. CEO/Secretary, Homa Bay County Public Service Board.